

11.	25CV2599	MISTI PALOMAR VS. TY A LEWIS ET AL
MOTION TO CONDUCT DISCOVERY		

The Notice does not comply with Local Rules 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

Plaintiff, Misti Palomar (“Plaintiff”), moves for an order requiring California Highway Patrol (“Defendant CHP”) and any other governmental agency, division, unit, or custodian with possession, custody, or control of responsive materials concerning Defendant, Ty A. Lewis (“Defendant Lewis”), to produce those materials to the Court for in camera review to conduct discovery pursuant to Evidence Code §§ 1043 and 1045 (*Pitchess*).

Plaintiff further requests the Court to compel Defendant CHP to provide further responses to Plaintiff’s Special Interrogatories to Defendant CHP, Set One, Nos. 1-2, 4-9 and Form Interrogatories to Defendant CHP, Set One, Nos. 12.1, 12.2, 12.3, 12.7, 14.2.

Legal Principles

On a showing of good cause a criminal defendant is entitled to discovery of relevant documents or information in the personnel records of a police officer accused of misconduct against the defendant. (Evid.Code, § 1043, subd. (b).) Good cause for discovery exists when the defendant shows both “ ‘materiality’ to the subject matter of the pending litigation and a ‘reasonable belief’ that the agency has the type of information sought.” (*City of Santa Cruz v. Municipal Court* (1989) 49 Cal.3d 74, 84, 260 Cal.Rptr. 520, 776 P.2d 222 (*Santa Cruz*).) A showing of good cause is measured by “relatively relaxed standards” that serve to “insure the production” for trial court review of “all potentially relevant documents.” (*Ibid.*) *Warrick v. Superior Court* (2005) 35 Cal.4th 1011, 1016 [29 Cal.Rptr.3d 2, 5, 112 P.3d 2, 4].

A showing of good cause requires a defendant seeking *Pitchess* discovery to establish not only a logical link between the defense proposed and the pending charge, but also to articulate how the discovery being sought would support such a defense or how it would impeach the officer's version of events. This court has long required that the information sought must be described with some specificity to ensure that the defendant's request is not so broad as to garner “ ‘all information which has been obtained by the People in their investigation of the crime’ ” but is limited to instances of officer misconduct related to the misconduct asserted by the defendant. (*Pitchess, supra*, 11 Cal.3d at p. 537, 113 Cal.Rptr. 897, 522 P.2d 305; accord, *People v. Mooc, supra*, 26 Cal.4th at p. 1226, 114 Cal.Rptr.2d 482, 36 P.3d 21; *Santa Cruz, supra*, 49 Cal.3d at p. 85, 260 Cal.Rptr. 520, 776 P.2d 222.) This specificity requirement excludes requests for officer information that are irrelevant to the pending charges. (See, e.g., *People v. Husted, supra*, 74 Cal.App.4th at p. 416, 87 Cal.Rptr.2d 875 [prior complaints of excessive force by arresting officer “irrelevant” after charge of resisting arrest was dropped and remaining charge was evasion of arrest in an automobile].) *Id.* at 1021.

Only documentation of past officer misconduct which is *similar* to the misconduct alleged by defendant in the pending litigation is relevant and therefore subject to discovery. (See *People v. Gill* (1997) 60 Cal.App.4th 743, 749, 70 Cal.Rptr.2d 369; *People v. Husted* (1999) 74 Cal.App.4th 410, 417, 87 Cal.Rptr.2d 875.) This is because “evidence of habit or custom [is] admissible to show that a person acted in conformity with that habit or custom on a given occasion.” (*People v. Memro*, *supra*, 38 Cal.3d at p. 681, 214 Cal.Rptr. 832, 700 P.2d 446.) Similarly, “evidence of reputation, opinion, and specific instances of conduct is admissible to show, inter alia, motive, intent, or plan.” (*Ibid.*) *California Highway Patrol v. Superior Court* (2000) 84 Cal.App.4th 1010, 1021 [101 Cal.Rptr.2d 379, 387].

“ ‘As a further safeguard,’ ” an order of disclosure ordinarily involves revelation of only the “ ‘name, address and phone number of any prior complainants and witnesses and the dates of the incidents in question.’ ” (*Alford*, *supra*, 29 Cal.4th at p. 1039, 130 Cal.Rptr.2d 672, 63 P.3d 228.) Section 1045(e) *requires* the court to impose a protective order providing that the “records disclosed or discovered may not be used for any purpose other than a court proceeding pursuant to applicable law.”⁸ (§ 1045(e).) The “relatively low threshold for discovery embodied in section 1043 is offset, in turn, by section 1045’s protective provisions which: (1) explicitly ‘exclude from disclosure’ certain enumerated categories of information (§ 1045, subd. (b)); (2) establish a procedure for in camera inspection by the court prior to any disclosure (§ 1045, subd. (b)); and (3) issue a forceful directive to the courts to consider the privacy interests of the officers whose records are sought and take whatever steps ‘justice requires’ to protect the officers from ‘unnecessary annoyance, embarrassment or oppression.’ (§ 1045, subds. (c), (d) & (e).)” (*Santa Cruz*, *supra*, 49 Cal.3d at pp. 83–84, 260 Cal.Rptr. 520, 776 P.2d 222.) *Chambers v. Superior Court* (2007) 42 Cal.4th 673, 679–680 [68 Cal.Rptr.3d 43, 46–47, 170 P.3d 617, 620]

Discussion

Plaintiff asserts the requested records are material for the following reasons:

1. They may support Plaintiff’s claims, impeach Defendant Lewis, identify witnesses, reveal admissions or findings, show prior similar misconduct, lead to admissible evidence, or establish facts relevant to the reasonableness, credibility, intent, absence of mistake, notice, pattern, or practice issues in the case;
2. They may support Plaintiff’s claims of negligence, negligent supervision, hiring, training and retention of Defendant Lewis she has against Defendant CHP. Such records help to show notice, knowledge, ratification, and failure to take corrective action against Defendant Lewis; and
3. Defendant CHP’s “privilege log” identifies such documents as being responsive to Plaintiff’s Demand for Production of Documents and Things, Set One.

Defendants argue Plaintiff has failed to establish good cause. Plaintiff’s affidavit stating that good cause is based on the need to establish negligence, and negligent hiring, supervision,

and training causes of action is irrelevant because Defendant CHP cannot be liable for either cause of action as it is not a recognized claim unless there is a statutory duty owed by the entity to the injured party. Defendant further contends that the majority of the records Plaintiff seeks are related to another lawsuit pending in Inyo County Superior Court and are not material to the allegations in this case.

Plaintiff seeks the following records from Defendants:

REQUEST ONE (1): Records of complaints, investigations, findings, discipline, corrective action, adverse action, or other proceedings concerning excessive force, unreasonable force, threatened force, taser use, taser display, taser deployment, threatened taser use, improper weapon display, assaultive conduct, intimidation, coercion, retaliation, abuse of authority, misuse of authority, or improper treatment of civilians.

Defendants argue the request is excessive overbroad, and violative of the restrictions on *Pitchess* discovery.

The Court finds that good cause exists for Plaintiff's request. However, the Court finds Plaintiff's request for records concerning coercion and retaliation is overbroad and Plaintiff has not met her burden establishing good cause. The request is narrowed to only records concerning excessive force, unreasonable force, threatened force, taser use, taser display, taser deployment, threatened taser use, improper weapon display, assaultive conduct, intimidation, abuse of authority, misuse of authority, or improper treatment of civilians.

REQUEST TWO (2): Complete Internal Affairs files concerning Defendant Lewis that relate to any of the categories described above, including complaints, intake materials, assignments, investigator notes, memoranda, reports, interviews, witness statements, officer statements, audio recordings, video recordings, photographs, exhibits, findings, recommendations, discipline, correspondence, and closing materials.

Defendants argue the Declaration of David Watson fails to establish how all materials related to all Internal Affairs investigations, regardless of the subject matter or underlying allegations, would themselves be admissible in this case or would lead to any item of evidence that would be admissible in this case involving the use of a taser.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted in part. The request is narrowed to only records concerning excessive force, unreasonable force, threatened force, taser use, taser display, taser deployment, threatened taser use, improper weapon display, assaultive conduct, intimidation, abuse of authority, misuse of authority, or improper treatment of civilians.

REQUEST THREE (3): Complete Investigative Services Unit files concerning Defendant Lewis that relate to any of the categories described above, including investigative reports, evidence logs,

recordings, witness interviews, officer interviews, summaries, findings, recommendations, internal communications, attachments, and exhibits.

Defendants argue the Declaration of David Watson fails to establish how all materials related to all Investigative Services Unit files, regardless of the subject matter or underlying allegations, would themselves be admissible in this case or would lead to any item of evidence that would be admissible in this case involving the use of a taser. Plaintiff is engaging in a fishing expedition and has not established good cause.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted in part. The request is narrowed to only records concerning excessive force, unreasonable force, threatened force, taser use, taser display, taser deployment, threatened taser use, improper weapon display, assaultive conduct, intimidation, abuse of authority, misuse of authority, or improper treatment of civilians.

REQUEST FOUR (4): Records concerning dishonesty, false statements, false reports, fabrication, omission of material facts, perjury, moral turpitude, credibility, impeachment, or other conduct bearing on Defendant Lewis's truthfulness or reliability as a witness.

Defendants argue that discovery is not justified by asserting that since an officer's credibility will be an issue at trial, anything that could conceivably bear on his credibility should be disclosed.

Plaintiff argues that Defendant Lewis's account of the incident to the Placerville Police Department materially contradicts Plaintiff's account of the same events, specifically, as to whether a taser was drawn, aimed, and discharged. As both accounts cannot be true, evidence that Defendant Lewis has previously falsified reports or given false statements in an official investigation is material.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

REQUEST FIVE (5): Records concerning discipline, termination, Skelly proceedings, administrative appeals, State Personnel Board proceedings, grievances, settlement of disciplinary matters, reinstatement proceedings, appeal decisions, or related employment proceedings involving Defendant Lewis, to the extent those records concern use of force, taser conduct, weapon display, citizen complaints, dishonesty, false reporting, credibility, retaliation, abuse of authority, or other issues material to this case.

Defendants argue Plaintiff failed to establish good cause and seeks to engage in a fishing expedition. Pursuant to Penal Code § 832.7, such records are confidential. Defendants contend that Plaintiff has not demonstrated that the disciplinary records would be admissible in the case or would lead to the discovery of admissible evidence.

In reply, Plaintiff narrows the request to discipline, adverse action, and the findings and disposition of any resulting appeal, limited to matters concerning use or threatened use of force, taser or weapon use or display, or dishonesty or false reporting.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted in part. The request is narrowed to records concerning discipline, adverse action, and the findings and disposition of any resulting appeal, limited to matters concerning use or threatened use of force, taser or weapon use or display, or dishonesty or false reporting.

REQUEST SIX (6): Any Brady list, Brady alert, Brady bank, officer-integrity database entry, credibility database entry, impeachment tracking record, officer-integrity notice, or similar record concerning Defendant Lewis, to the extent such record exists and is maintained by CHP or any related custodian.

Defendants assert that *Brady* obligates the prosecution or the prosecution team to disclose material within its possession, not an employer like Defendant CHP. Additionally, a search for such material within a peace officer's personnel file goes beyond the scope of and is not mandated by the *Pitchess* procedure.

Plaintiff asserts she asks whether Defendant CHP maintains a record, a Brady-list entry, officer-integrity or credibility database entry, or equivalent notation – concerning Defendant Lewis. Plaintiff argues such records exist and *Pitchess* is the mechanism by which the records are obtained. If no such records exist, the custodian can say so under oath at the in-camera hearing.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

REQUEST SEVEN (7): Any record concerning training, remedial training, counseling, corrective action, restriction of duties, removal from assignment, or employment status change involving Defendant Lewis that relates to use of force, taser use, threatened force, weapons display, truthfulness, reporting, credibility, retaliation, or abuse of authority.

Defendants contend Plaintiff's request is a fishing expedition, as it is overly broad. Plaintiff further has not demonstrated that these records would be admissible or even lead to the discovery of admissible evidence.

Plaintiff argues that if Defendant Lewis was retrained, counseled, restricted, or reassigned following a prior aggression, force or taser incident, it bears on his knowledge of applicable taser policy, on whether the April 10, 2025, deployment departed from training he had already received, and on malice or conscious disregard under Civil Code § 3294.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted in part. The request is narrowed to only records that relate to use of force, taser use, threatened force, weapons display, truthfulness, reporting, credibility, and abuse of authority.

REQUEST EIGHT (8): All California Commission on Peace Officer Standards and Training (POST) records regarding Defendant Lewis in CHP's possession including, but not limited to, POST records for hiring, training compliance, certification tracking, background checks, and employment verification.

Defendants assert that Plaintiff does not establish the records requested are material to her cause of action involving the taser incident and that these records would be admissible or lead to the discovery of admissible evidence.

Plaintiff contends that Defendants' argument that these materials fall outside the scope of Penal Code § 832.8's enumeration of personnel records would mean that no *Pitchess* privilege attaches to them and they are discoverable in the ordinary course pursuant to Code of Civil Procedure § 2017.010, yet Defendant CHP withheld such records as privileged on its log. To the extent the Court concludes they are not personnel records, it should order them be produced directly.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

REQUEST NINE (9): Records relating to the April 10, 2025, incident involving Plaintiff, including incident reports, supplemental reports, statements, audio, video, photographs, dispatch materials, CAD logs, taser data, taser download records, body-worn camera or patrol-camera materials if any, use-of-force review materials, supervisory reviews, complaint materials, and internal investigation materials.

Defendants concede there is good cause for the Court to perform an in camera review of the materials related to the internal investigation into the specific incident that forms the basis of this action, subject to the Court's discretion as to what is material and relevant.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

REQUEST TEN (10): All records identified in CHP's Privilege Log provided by CHP with Defendant California Highway Patrol's Response to Plaintiff's Request for Production of Documents and Things, Set One.

Defendants argue the records are remote in time because they pertain to events six and seven years prior to the alleged taser assault and they are also immaterial to the action. Plaintiff failed to explain how they establish good cause and did not explain materiality of any of the items specifically identified in the privilege log.

In regards to Defendants' remoteness argument, Plaintiff does not ask the Court to disregard Evidence Code § 1045, subdivision (b)(1) but rather it be applied in chambers rather than to permit Defendant CHP to apply it unilaterally.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

REQUEST ELEVEN (11): Any other documents, recordings, witness information, findings, conclusions, or materials in Defendant Lewis's personnel, Internal Affairs, Investigative Services Unit, disciplinary, employment, appeal, or credibility files that the Court determines are relevant and discoverable after in camera review.

Defendants argue that the records requested fall outside the scope of Penal Code § 832.8's enumeration of personnel records.

Plaintiff contends that Defendants' argument that these materials fall outside the scope of Penal Code § 832.8's enumeration of personnel records would mean that no *Pitchess* privilege attaches to them and they are discoverable in the ordinary course pursuant to Code of Civil Procedure § 2017.010, yet Defendant CHP withheld such records as privileged on its log. To the extent the Court concludes they are not personnel records, it should order them be produced directly. Plaintiff further asserts that the request that the Court exercise the discretion § 1045(b) already confers on it.

The Court finds that good cause exists for Plaintiff's request. Plaintiff's request is granted.

Plaintiff's motion is granted as narrowed. The Court shall conduct an in camera hearing of the requested records where the Court shall determine the relevance of each item. The Court further shall enter a mutual protective order limiting the use of the disclosed materials to this litigation and related court proceedings. All disclosed documents and all copies thereof shall be returned to Defendants' counsel at the final resolution of the action, including appeals.

As for Plaintiff's request to compel Defendant CHP to provide further responses to Plaintiff's Special Interrogatories to Defendant CHP, Set One, Nos. 1-2, 4-9 and Form Interrogatories to Defendant CHP, Set One, Nos. 12.1, 12.2, 12.3, 12.7, 14, the Court does not find the meet and confer requirements of Code of Civil Procedure section 2030.300(b)(1) or separate statement requirements of California Rules of Court, Rule 3.1345 have been met. Plaintiff's request is denied without prejudice.

TENTATIVE RULING #11:

PLAINTIFF'S MOTION IS GRANTED AS NARROWED WITHIN THE TENTATIVE RULING. THE COURT SHALL CONDUCT AN IN CAMERA HEARING OF THE REQUESTED RECORDS WHERE THE COURT SHALL DETERMINE THE RELEVANCE OF EACH ITEM. THE COURT FURTHER SHALL ENTER A MUTUAL PROTECTIVE ORDER LIMITING THE USE OF THE DISCLOSED MATERIALS TO THIS LITIGATION AND RELATED COURT PROCEEDINGS. ALL DISCLOSED DOCUMENTS AND ALL COPIES THEREOF SHALL BE RETURNED TO DEFENANTS' COUNSEL AT THE FINAL RESOLUTION OF THE ACTION, INCLUDING APPEALS.

PLAINTIFF'S REQUEST TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, NOS. 1-2, 4-9 AND FORM INTERROGATORIES, SET ONE, NOS. 12.1, 12.2, 12.3, 12.7, AND 14 IS DENIED WITHOUT PREJUDICE.

September 4, 2026
Dept. 9
Civil Tentative Rulings

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.